

23STCV22029 23STCV22029

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-27

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Case Number: 23STCV22029 Hearing Date: August 27, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Thursday – August 27, 2026

Calendar No.

PROCEEDINGS

Hugo

Minott, et al. v. Roberto Moroles, et al.

23STCV22029

1.

City of Los

Angeles' Motion to Strike Portions of Third Amended Complaint

TENTATIVE RULING

City of Los Angeles' Motion to Strike Portions of

Third Amended Complaint is granted without leave to amend, in part, and with 20 days leave to amend, in part.

Background

Plaintiffs filed the Complaint on September 13, 2023 and the Third Amended Complaint on April 10, 2026. Plaintiffs allege the following facts. Plaintiff Hugo Minott was involved in a motor vehicle collision with Defendants. Defendant Roberto Moreles was intoxicated. City employees allegedly negligently supervised Roberto Moreles. Plaintiffs allege the following causes of action: 1. Negligence/Negligence Per Se (Gov. Code §§ 815.2 and 820, CVC § 17001) 2. Loss of Consortium.

Meet and Confer

Defendant filed a meet and confer declaration in sufficient compliance with CCP § 435.5. (Decl., Robin Jung, ¶¶ 2-3).

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading.

CCP § 436(a). The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. CCP § 436(b). The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. CCP § 436. The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. CCP § 437.

Defendant moves to strike the following allegations:

“1) The “Negligence of City Supervisors” subsection, beginning on page 7, line 10, which contains Paragraphs 35 – 44 of the TAC;

2) “and the CITY Supervisors” contained in Paragraph 45 (page 9, line 14);

3) Paragraph 48 of the TAC;

4) The “Negligence Per Se” subsection, beginning on page 10, line 4, which contains Paragraphs 49 – 53 of the TAC.” (Notice of

Motion, p. 2, lines 3-8).

“Except

as otherwise provided by statute: A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” Gov. Code § 815(a). “[U]nder the Tort Claims Act all governmental tort liability is based on statute, the general rule that statutory causes of action must be pleaded with particularity is applicable. Thus, to state a cause of action against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity.” *Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795 (internal quotation omitted).

“Negligent

entrustment is a common law liability doctrine, which arises in numerous factual contexts. [Citation.] In cases involving negligent entrustment of a vehicle, liability “is imposed on [a] vehicle owner or permitter because of his own independent negligence and not the negligence of the driver.” [Citations.] “Liability for the negligence of the incompetent driver to whom an automobile is entrusted does not arise out of the relationship of the parties, but from the act of entrustment of the motor vehicle, with permission to operate the same, to one whose incompetency, inexperience, or recklessness is known or should have been known by the owner.” [Citation]; accord, Rest.2nd Torts, § 308 [“It is negligence to permit a third person to use a thing or to engage in an activity which is under the control of the actor, if the actor knows or should know that such person intends or is likely to use the thing or to conduct himself in the activity in such a manner as to create an unreasonable risk of harm to others.”]” [¶] California case law recognizes the theory that an employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee. [Citation.] Liability is based upon the facts that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.” [¶] A claim that an employer was negligent in hiring or retaining an employee-driver rarely differs in substance from a claim that an employer was negligent in entrusting a vehicle to the employee. Awareness, constructive or actual, that a person is unfit or incompetent to drive underlies a claim that an employer was negligent in hiring or retaining that person as a driver. (See Judicial Council of Cal., Civ. Jury Instns. (2010) CACI No. 426.) That same awareness underlies a claim for negligent entrustment. (See CACI No. 724.) In a typical case ... the two claims are functionally

identical.” McKenna v. Beesley (2021) 67 Cal.App.5th 552, 565–567
(internal citations and quotations omitted; emphasis added).

Thus, as noted above, negligent entrustment is a common law form of direct liability. “We find no relevant case law approving a claim for direct liability based on a public entity’s allegedly negligent hiring and supervision practices.” *de Villers v. County of San Diego* (2007) 156 Cal.App.4th 238, 252. Based on the authorities above, the Court sustained Defendant’s demurrer to the Negligent Entrustment cause of action stated in the Second Amended Complaint.

Now, in the Third Amended Complaint, Plaintiff has not alleged a separate negligent entrustment cause of action. Instead, Plaintiff alleges vicarious liability against the public entity based on certain public employees’ negligence in failing to supervise fellow employee – Roberto Moreles. Pursuant to *C.A. v. William S. Hart Union High School District* (2012) 53 Cal.4th 861, a public entity can be held liable for negligent supervision based on vicarious liability principles. However, *C.A.* involved sexual harassment and abuse of a school counselor against a student. Thus, the duty of care stemmed from the special relationship between a school and its students. “Ample case authority establishes that school personnel owe students under their supervision a protective duty of ordinary care, for breach of which the school district may be held vicariously liable.” *C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 865.

Such a special relationship does not exist under the facts of the instant case. In addition, the underlying facts involved a tort for sexual abuse rather than motor vehicle negligence. The C.A. Court stated: “Within these limits, we conclude a public school district may be vicariously liable under section 815.2 for the negligence of administrators or supervisors in hiring, supervising and retaining a school employee who sexually harasses and abuses a student.” *C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 879 (emphasis added). Plaintiff has not identified a specific case that expanded this theory to allow for vicarious liability of a public entity based on the alleged liability of a public employee supervisor of another fellow public employee who became intoxicated and was involved in a motor vehicle accident. As noted above, the holding of *C.A.*, specifically stated that this theory of vicarious liability could be maintained “within these limits.” The instant Court declines to expand this theory of liability to the negligent

entrustment context. Otherwise, it would appear that Plaintiff is merely attempting to artfully plead around and avoid recognized authority stating that negligent entrustment is not a viable cause of action against a public entity.

Defendant's motion to strike items 1 to 3 above is granted without leave to amend.

As to Item 4, the motion to strike is granted with 20 days leave to amend. Negligence per se may be a viable theory against a public entity, but, the failure to specifically state a basis for liability under Gov. Code § 815.6 renders the negligence per se allegations improper.

"Pursuant to Government Code section 815.6, a public entity's failure to comply with a mandatory safety regulation designed to protect a class of persons which includes the plaintiff may, as in analogous private litigation, constitute negligence per se." *Fredette v. City of Long Beach* (1986) 187 Cal.App.3d 122, 134. "Under the doctrine of negligence per se, codified in Evidence Code section 669, violation of a statute without justification constitutes presumptive failure to exercise due care only if the violation proximately caused the injury and the person injured was one of the class of persons for whose benefit the statute was adopted. Whether the injury involved resulted from an occurrence of the nature which the statute was designed to prevent and whether the plaintiff was one of the persons for whose protection the statute was enacted are questions of law. Whether the party to an action has violated a statute is generally a question of fact. Similarly, the question of whether the violation has proximately caused or contributed to the plaintiff's injury is usually a matter for jury decision. [¶] Although the above discussed principles apply generally to all tort litigation, the threshold question in cases involving a public entity is whether the governmental body was under a mandatory duty to perform a particular act." *Fredette v. City of Long Beach* (1986) 187 Cal.App.3d 122, 134–135. Without alleging a specific cause of action based on a violation of a mandatory duty, negligence per se is not available against a public entity.

Therefore,
Defendant's motion to strike is granted without leave to amend, in part, and with 20 days leave to amend, in part.

Defendant is ordered
to give notice of this ruling.